

CALIMESA FIRE DEPARTMENT
POLICY MANUAL
VOLUME 1 – EMPLOYEE MANUAL
Policy: 203.03 Uniforms and Insignias

11/2023

AUTHORIZED UNIFORM ARTICLES:

The following are the currently approved minimum standard uniforms of the Calimesa Fire Department. Items described as "regulation" must meet approval standards established by the Department.

Information regarding "Approved" Uniform apparel is available at: Authorized Department Uniform Vendors Including:

2 Hot Active Wear and Uniform
26205 Jefferson Ave. #100
Murrieta, CA. 92502
Phone number (951) 304-0033.

Class B Uniform

Uniforms shall generally comply with the following specifications. However, brand and serial numbers may vary based upon supply chain availability.

Shirts:

Workrite: Short Sleeve MIN 700NMX45MN
Long Sleeve MIN 705NX45MN

Shirt Color:

The following positions shall wear the specified colored shirt:

Operations personnel shirts shall be midnight navy.

Command officers shall be midnight navy, white, or black.

Trousers:

Workrite: 402NM5MS Midnight Navy

Regulation trousers shall be navy blue and made of fire-resistant material.

Chief Officer's trousers shall be (black) Nomex, fire resistant wool or PBI (Polybenzimidazole)

NFPA Dual Compliant Single layer trousers may replace traditional regulation "station pants."

Boots:

Boots must be regulation safety type meeting ANSI Z41 toe impact and compression specifications. They must be plain, smooth black leather, minimum height 8", and can be secured by zippers, laces or pull-on style Station wear.

The shoe must be securely fastened while being worn to assure proper ankle support.

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Members, while performing rescues on rough terrain and wildland firefighting may utilize NFPA approved wildland boots.

Socks:

Socks shall be PLAIN black, white, or navy blue or grey.

Belt/Buckle:

Belts shall be 1 3/4" wide, black, and basket weave. All members shall use an approved buckle or the official "Calimesa" buckle.

Jackets:

The regulation uniform jacket shall be midnight navy. Name, rank, and the Calimesa Fire Department insignia shall be sewn or silk-screened on the jacket. Jackets may be approved "Bomber" jacket, Windbreakers, wind shirts, or approved winter uniform jackets. All are available through 2 Hot Active Wear and Uniform.

Cap (optional):

Caps shall be midnight navy Calimesa approved hats Calimesa with the Calimesa Fire Department. Customized caps may be worn if prior approval is obtained from the uniform review committee.

Sweatshirts (optional):

Job Shirt Style Sweatshirts shall be regulation 100% cotton or fire-resistant sweatshirts with appropriate embroidered Calimesa markings (i.e., name, rank). They may be pullover or zipper type, with or without a hood.

P.T. Clothing (optional):

Physical training clothing shall consist of rank appropriate midnight navy or black, fire department tee-shirt, and physical fitness style, modest, (gym) shorts or pants, and athletic shoes/socks.

MINIMAL PERSONAL UNIFORM INVENTORY

All operations personnel are required to have the following minimal uniform inventory at all times while on duty:

- Uniform shirts
- Two pairs of navy-blue uniform trousers
- One pair of ANSI Z41 black leather boots
- Socks
- One black leather belt
- One jacket

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Class A Uniform

Shirt:

Command Officers and certain staff members shall wear the regulation white shirt with long or short sleeves.

All other sworn members shall wear the regulation blue shirt with long or short sleeves.

All members shall wear their badge, nameplate, and collar insignia appropriate to rank or title. The shirt shall be worn over a plain white 100% cotton crewneck undershirt.

Collar Insignias:

Collar insignia devices, depicting rank or title, shall be worn in a manner consistent throughout the Department. Bugle or star devices shall be affixed so as to be parallel with the front edge and centered between the top and bottom edges of the collar. Initials or letter style devices should be affixed so as to be parallel with the top edge of, and centered between the top and bottom edges of the collar. The front edge of the device shall not be more than one-half to three-quarter inches from the front edge of the collar.

Tie:

A tie shall only be worn for special events or funerals. The tie shall be navy blue or black in color.

Trousers:

For Command Officers, trousers shall be of fire resistant wool, Nomex or PBI and of approved style.

For all other sworn members, they shall be dark navy blue and made of regulation fire resistant material.

Slacks/Pants (Non-sworn Personnel):

Navy blue slacks with a plain waistband and fly front or navy-blue slacks with a belt.

Socks:

Socks shall be plain black or navy blue; however, they may be worn with a white undersock or be black or navy blue with white soles attached. White socks may be worn with high top boots.

Belt/Buckle:

Belts shall be 1 1/2" wide, black, and either plain or basket weave design. All members shall use an approved buckle. Tactical second chance style belts may be worn with single layer dual compliant tactical pants.

Jackets:

The regulation uniform jacket shall be navy blue with name, rank, and the Calimesa Fire Department insignia affixed to it.

NOTE: The regulation navy blue windbreaker is optional.

Sweater:

Regulation navy blue collarless sweater. Customized sweaters may be submitted for approval to the uniform review committee.

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WILDLAND UNIFORM

The standard single layer NFPA compliant uniform is to be worn during wildland fire fighting operations. High top uniform boots are recommended for additional ankle support.

Approved brush jackets, brush pants and brush boots should be worn when appropriate to protect the member's arms, legs, feet, and upper body.

MATERNITY UNIFORM

Regulation blouse may be worn with maternity slacks and top or dress.

UPDATES

This procedure will be reviewed and updated as necessary by management.

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Policy: 203.04 Hats

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PURPOSE

The purpose of the Hat Policy is to ensure all personnel understand when and where caps and hats may be worn appropriately

POLICY

The Hat Policy communicates an expectation of when and where caps/ hats may be worn.

Personnel should generally refrain from wearing a hat or ‘ball” cap while inside a City building while conducting non-emergency business or visits, conducting official presentations, education or representing the Department in any official capacity. The allowable exceptions may be wearing assigned PPE while training or wearing the appropriate dress style uniform cap.

Caps/hats appearance shall be kept clean and serviceable similar in a manner to other uniform requirements.

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Policy: 204.01 Technological Asset Protection

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PURPOSE

The purpose of the Technological Asset Protection Policy is to ensure the ergonomics, quality, safety, productivity and longevity of our computers, monitors, televisions, copiers, printer, faxes, scanners, radios, mobile phones, modem, routers, and external storage devices provided by the information technology department.

POLICY

1. Issue & Return
 - a. All technology is the property of the Calimesa Fire Department and will be issued and returned to the Fire Department in unaltered, undamaged and in working condition.
2. Protection
 - a. All technology will be handled with care and diligence. It shall not be dropped, scratched, thrown, lost or stolen. Damage or loss of Fire Department technological assets comes at great fiscal cost and doing so may result in the loss or restriction of a member's use of technology and may also result in disciplinary actions up to and including termination from employment.
3. Tampering & Misuse
 - a. To ensure all technological assets are in full working order, the alteration, tampering, misuse, or changing of equipment settings without authorization is against Fire Department policy and may result in disciplinary action up to and including termination from employment. Examples of alteration, tampering and misuse include but are not limited to:
 - i. Changing approved settings.
 - ii. Moving, deleting, renaming, altering programs, desktop icons, folders files, short cuts, backgrounds, and bookmarks.
 - iii. Attaching anything to the exterior of the device.
 - iv. Using devices or programs for personal or non-Fire Department Activities.
 1. Example searching the Internet, using social media, downloading files. Viewing pictures, streaming video or music, checking email or doing personal work.
 - v. Devices will not be used to visit unapproved websites only approved websites will be visited.
4. Repair
 - a. No employee shall attempt to fix, repair, or resolve issues with Fire Department technological assets. All damage, issues, and malfunctions will be reported to the on-duty Fire Captain. The Fire Captain will notify the Deputy Fire Chief of the situation. The Deputy Fire Chief will coordinate with the City of Calimesa Officials to have an approved Information Technology Specialist repair the device or resolve

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the issue. In the event the Deputy Fire Chief is unavailable the Fire Captain shall coordinate directly with the City of Calimesa Officials to repair or resolve the issue. Afterword, the Fire Captain shall generate an email communication summary to the Deputy Fire Chief of the situation.

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Policy: 204.02 Daily Apparatus Inspection

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PURPOSE

The purpose of the Daily Apparatus Inspection Policy is to establish a regiment for reviewing Fire Department apparatus to ensure they are within the proper working order.

POLICY

It is the responsibility of the duty Captain / Battalion Chief to ensure daily check of Fire Department vehicles. The inspection of the vehicle's components shall be recorded on the appropriate Department check off sheet forms and entered into the appropriate electronic tracking platform. All vehicle components deemed needing repair shall be documented on the appropriate forms indicating their problem or issues.

Daily Apparatus Inspection should occur each morning. Problems or issues should be promptly reported to the Duty Battalion Chief, Deputy Fire Chief or Fire Chief.

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Policy: 204.03 Vehicle Accident Reporting

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PURPOSE

The Vehicle Accident Reporting Policy is to provide a standard system for reporting all fire department vehicular accidents. This policy is also intended to include any accident on private property or Fire Department premises.

REPORTING REQUIREMENTS

All vehicle accidents involving Fire Department vehicles must be reported to Fire Chief/Dispatch immediately. The report to the Fire Chief/Dispatch must include the following:

1. Unit Number
2. Location of the Accident
3. If additional medical assistance (BLS, ALS, Rescue, etc.) is needed.
4. If a cover assignment is needed.
5. Whether the apparatus/vehicle is drivable.
6. An estimate of the extent and nature of vehicle damage or injuries.

AT THE ACCIDENT SCENE:

1. Initiate appropriate medical assistance if needed.
2. Do not discuss the accident with anyone other than Fire and Police representatives.
3. Do not move the vehicle unless it is creating a traffic hazard.
4. If you must move the vehicle – chalk the position of the vehicles tires prior to moving.
5. Obtain witness' names, addresses and phone numbers.
6. Remain at the accident scene until the Police and the Fire Chief have completed their investigations.
7. Complete the City of Calimesa Fire Department Accident Report Form
8. Complete the City of Calimesa Equipment Management Vehicle Damage Report Form
9. Fire Department employees involved in the accident should be isolated from the general public, the other parties involved in the accident and the news media.
10. In the event of a serious accident, employees should be taken to the nearby fire station.
11. Employees shall not be permitted to talk to anyone about the accident except to Police and Fire officials.
12. Employees may be placed on Administrative Leave with Pay during the initial investigative process.

FIRE CHIEF RESPONSIBILITIES

Fire Chief (or Deputy Fire Chief) and Duty Battalion Chief will be dispatched to all vehicle accidents. It is the Fire Chief's (or Deputy Fire Chief's) and Duty Battalion Chief's responsibility

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to ensure that the accident paperwork is completed immediately. The accident paperwork consists of the following two (2) forms:

1. The City of Calimesa Fire Department Accident Report Form (Form# 408.01). This form shall be completed by the Driver and signed off by both the Captain and Fire Chief.
2. The City of Calimesa Equipment Management Vehicle Damage Report Form (Form# 402.12). The Captain shall complete this form.

ACCIDENT INVESTIGATIONS

All accident investigations will include separate interviews with the Captain of the Fire Department vehicles and all crewmembers. Other witnesses, both civilian and Fire Department members will also be interviewed. Names and addresses will be obtained.

Notes of each interview will be taken. The investigating Fire Chief (or Deputy Fire Chief) will collect all reports and statements before individuals are released from the scene.

The Fire Chief (or Deputy Fire Chief) is responsible for initiating the accident investigation by asking each member of the involved crew to:

1. Describe what was going on in the apparatus right before impact.
2. Identify where you were going.
3. Describe the accident.

The Fire Chief (or Deputy Fire Chief) shall collect and forward the following to the City Manager prior to the end of shift:

1. Photographs of the accident
2. Police Report Card with Police Report ID #
3. Name and badge number of investigating Police Officer
4. Names, addresses, hospital of all injured parties including civilians.
5. The City of Calimesa Fire Department Accident Report Form
6. The City of Calimesa Equipment Management Vehicle Damage Report Form
7. Accident statements.
8. Witnesses' names, addresses and phone numbers.
9. The Fire Chief (or Deputy Fire Chief) must specify the corrective action taken to prevent similar future accidents.

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Policy: 204.04 Vehicles: Overnight (Take Home) Policy

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PURPOSE

The purpose of the vehicle overnight (take home) permit policy is to establish conditions under which a City vehicle may be parked overnight at an employee's home and to explain the responsibilities of members and supervisors related to this privilege.

POLICY

Employees of the Fire Department having significant need for a City vehicle after normal business hours may be provided with such a vehicle. The storage of the vehicle at the member's home is intended to facilitate response to emergency incidents, not for the convenience of the member.

The employee shall not use the City vehicle for personal errands or personal business or any other non-City business. The employee shall store the vehicle in a safe and secure manner at his/her home. It is the responsibility of the operator of a City vehicle to comply with all state and federal laws at all times while driving, parking, or storing a City vehicle.

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Policy: 204.05 Use of Privately-Owned Vehicles during Fire Department Business

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PURPOSE

The purpose of this policy is for Privately-Owned Vehicles on Fire Department business to ensure that all staff has the required insurance documentation for the City of Calimesa.

REQUIREMENTS

A member of the Department must be physically capable of operating his/her vehicle safely. Those members certified as not eligible to drive Fire Department vehicles will not be allowed to drive their own vehicles on Fire Department/City Business. Additionally, members must possess the appropriate valid driver's license and a good driving record and have current valid automobile insurance in accordance with the City's requirements.

DRIVER'S LICENSE

For information on the City's driver's license requirements, see Policy No. 103.12, Driver's License Policy.

INSURANCE

Proof of insurance is required before any privately-owned vehicle can be authorized for use on Department business. Members are required to furnish proof of insurance (liability) for business use of a privately-owned vehicle at the time of original application for authorization and shall be provided to the Fire Chief or Deputy Fire Chief annually thereafter, no later than January 31 of each year. A certificate of insurance, payment receipt, or letter from insurance agent, copy of the policy or other appropriate document will be acceptable verification. Such insurance shall be maintained by the member at all times he/she is authorized to use a privately-owned vehicle for Fire Department business. Should the status of the insurance change in any manner, notification of such changes should be made immediately to the Human Resources Department. A member shall not use a privately-owned vehicle for Fire Department/City business during any period of time that his/her personal insurance has been suspended or cancelled.

1. Employees that are authorized to use privately owned vehicles on Department business shall maintain minimum coverage in an amount not less than \$50,000 per person/\$100,000 per occurrence (or a combined single limit of \$100,000) and property damage coverage in an amount not less than \$50,000 per occurrence.

Employees shall comply with any updated minimum insurance policy coverages and limits as may be amended from time to time.

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- B. California Insurance Code §11580.9 states that where two or more policies affording valid and collectible liability insurance apply to the same motor vehicle in an occurrence out of which a liability loss shall arise, it shall be conclusively presumed that the insurance afforded by that policy in which the motor vehicle is described or rated as an owned vehicle is primary and the insurance afforded by any other policy shall be excess.
- C. The Department and City shall not be responsible for any increase in the employee's automobile insurance premium as a result of an accident.
- D. In the event of an accident, the employee is responsible for paying any deductibles the insurance company may require.
- E. If insurance coverage is canceled, terminated, lapsed, or for any other reason curtailed, the immediate supervisor must be notified by the employee and the vehicle shall not be used for Department or City service or business.
- F. Should an employee using his/her privately owned vehicle on Department or City business be involved in an accident with resulting injury or property damage, the employee's own insurance carrier shall respond to defend the employee. Should a claim exceed the limits of the employee's liability insurance coverage, PARSAC's liability coverage program would respond in an excess capacity if the accident qualifies as a covered occurrence.

ELIGIBILITY

Approval of any personal vehicle usage while on Fire Department/City business must be approved by the Fire Chief or City Manager prior to use.

Mileage from the employee's home to first point of duty, and from the last point of duty to his/her home, will not be considered as Fire Department/City Business and will not be eligible for reimbursement. Whenever possible, Fire Department vehicles should be used for Fire Department/City Business.

Documentation for all trips is required for expense reimbursement. The approved rate of reimbursement will be at the IRS rate allowed. Requests for reimbursement shall be submitted in accordance with the City of Calimesa Travel Reimbursement Policy.

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Policy: 205.01 POLICY AGAINST DISCRIMINATION, HARASSMENT AND RETALIATION
EQUAL EMPLOYMENT OPPORTUNITY

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PURPOSE

This purpose of this policy is to describe and reaffirm prohibited discrimination, harassment and retaliation and to outline the Department's responsibilities for compliance with the Policy.

POLICY

The City of Calimesa maintains a strong policy against unlawful discrimination, harassment and retaliation in the workplace, including all applicants and all members of the Calimesa Fire Department. The City's Policy against discrimination, harassment and retaliation is set forth in Rule 43 of the City's Personnel Rules and Regulations. A copy of the Personnel Rules and Regulations is maintained at each station, and may also be reviewed from the City of Calimesa Human Resources Department.

In the event there is deemed to be any conflict between this Policy and the City of Calimesa Personnel Rules and Regulations, the Personnel Rules and Regulations shall take precedence.

For purposes of the complaint procedure (Section E(1) of Rule 43), a covered individual who believes he or she has been subjected to discrimination, harassment or retaliation may make a complaint, orally or in writing, to any of the individuals listed below without regard to any chain of command.

- a. Immediate supervisor
- b. Any supervisor or manager within or outside the Fire Department
- c. Fire Chief or Deputy Fire Chief
- d. Human Resources Director or designated representative

The following is a copy of Rule 43 of the City of Calimesa Personnel Rules and Regulations. All subsequent amendments to Rule 43 shall be deemed incorporated herein by this reference.

"Rule 43 Policy Against Unlawful Discrimination, Harassment and Retaliation

A. Policy. The City is strongly committed to prohibiting and preventing harassment, discrimination and retaliation in the workplace, and providing a procedure for investigating and resolving internal complaints regarding such conduct.

1. The City has zero tolerance for any conduct that violates this Policy. Conduct need not arise to the level of a violation of law to violate this Policy. Instead a single act can violate this Policy and provide grounds for discipline or other appropriate sanctions. The City encourages all covered individuals to report any conduct that is believed to violate

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this Policy as soon as possible. Individuals found to have retaliated in violation of this Policy will be subject to appropriate sanction or disciplinary action, up to and including dismissal.

2. *Harassment, discrimination or retaliation against a covered individual, as defined herein, is prohibited and will not be tolerated. This Policy prohibits harassment and discrimination because: (a) of an individual's protected classification; (b) of the perception that an individual has a protected classification; or (c) the individual associates with a person who has or is perceived to have a protected classification. Similarly, this policy prohibits retaliation against any individual who files and supports a complaint involving a violation of this Policy, participates in the complaint resolution process, or associates with a person who makes a complaint, or similar protected activity.*

3. *Disciplinary action, up to and including dismissal, or other appropriate sanction, will be instituted for any sustained finding of prohibited behavior.*

B. Covered Individuals and Scope.

1. *This Policy applies to all City employees regardless of rank or title, while they are on any City property or premises, and/or while performing services on behalf of or for the City.*

2. *This Policy also applies to City elected and appointed officials, job applicants, vendors, contractors, business associates, interns, volunteers, and members of the public, who are on any City property or premises, and/or performing services on behalf of or for the City pursuant to contract or other arrangements. Except where the context requires otherwise, all references to employees in this Policy shall include non-employees specified in this subsection.*

3. *This Policy applies to all terms and conditions of employment, internships, and volunteer opportunities, including, but not limited to, selection, hiring, placement, promotion, disciplinary action, layoff, recall, transfer, leave of absence, compensation, and training.*

C. Definitions.

1. *Protected Classification. This Policy prohibits harassment, discrimination and retaliation because of an individual's protected classification. "Protected classification" includes race, religion creed, color, national origin, ancestry, citizenship status, sex, gender, gender identity, gender expression, sexual orientation, military or veteran status,*

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marital status, pregnancy, age (over 40), medical condition, genetic characteristics or information, physical or mental disability and any other statutorily protected classifications.

2. **Protected Activity.** *This Policy prohibits harassment, discrimination and retaliation because of an individual's protected activity. "Protected activity" includes: making a request for or receiving an accommodation for a disability; making a request for or receiving accommodation for religious beliefs or practices; making or supporting a complaint under this Policy; opposing violations of this Policy; or participating in an investigation pursuant to this Policy.*

3. **Discrimination.** *This Policy prohibits treating covered individuals differently because of the individual's protected classification, actual or perceived; because the individual associates with a person who is an actual or perceived member of a protected classification; or because the individual participates in a protected activity as defined in this Policy.*

4. **Harassment.** *"Harassment" includes, but is not limited to, the following types of behavior that is taken because of a covered individual's actual or perceived membership in a protected classification:*

a. *Speech, including but not limited to: epithets, derogatory comments or slurs, or propositioning on the basis of a protected classification. This includes inappropriate comments on appearance, including dress or physical features, or dress consistent with gender identification, or race, sexual, or ethnicity oriented stories or jokes.*

b. *Physical acts, including but not limited to: assault, impeding or blocking movement, offensive touching, or physical interference with normal work or movement. This includes pinching, grabbing, patting, propositioning, leering or making explicit or implied job threats or promises in return for submission to physical acts.*

c. *Visual acts, including but not limited to: derogatory gestures, posters, notices, e-mails, bulletins, cartoons, pictures, or drawings related to a protected classification (including social media postings, texts, videos sent via email).*

d. *Unwanted sexual advances, including but not limited to: requests for sexual favors, or unwelcome/offensive written, verbal, physical and/or visual contact with sexual overtones, when submission to or rejection of the conduct is used as the basis for employment decisions, or where the conduct is intended to or actually does unreasonably interfere with an individual's work performance or create an intimidating, hostile or offensive working environment.*

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5. Guidelines for Identifying Harassment.

a. *Harassment includes any conduct which would be "unwelcome" or "offensive" to an individual of the recipient's same protected classification and which is taken because of the recipient's protected classification.*

b. *It is no defense that the recipient of harassment appears to have voluntarily "consented" to the conduct at issue. A recipient may not protest for many legitimate reasons, including the need to avoid being insubordinate or to avoid being ostracized.*

c. *Simply because no one has complained about a joke, gesture, picture, physical contact, or comment does not mean that the conduct is welcome. Harassment can evolve over time. Small, isolated incidents might be tolerated up to a point. The fact that no one is complaining now does not preclude someone from complaining if the conduct is repeated in the future.*

d. *Even visual, verbal, or physical conduct between two individuals who appear to welcome the conduct can constitute harassment of a third individual who observes the conduct or learns about the conduct later. Conduct can constitute harassment even if it is not explicitly or specifically directed at an individual.*

e. *Conduct can constitute harassment even if the individual engaging in the conduct had no intention to harass (e.g., gifts, over attention, or endearing nicknames). Even well intentioned conduct can violate this Policy if the conduct is directed at or implicates a protected classification, and if a reasonable person of the recipient's same protected classification would find it offensive or unwelcome.*

6. Retaliation. *Retaliation occurs when adverse conduct is taken against a covered individual because of the individual's protected activity as defined in this Policy. "Adverse conduct" may include but is not limited to: disciplinary action, counseling, taking sides because an individual has reported harassment or discrimination; spreading rumors about a complainant or about someone who supports or assists the complainant; shunning or avoiding an individual who reports harassment or discrimination; or making real or implied threats of intimidation to prevent or deter an individual from reporting harassment or discrimination.*

D. Responsibilities.

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1. Directors, managers, supervisors and other City management and supervisory personnel are responsible for compliance with this Policy and each of the following:

- a. Informing employees of this Policy.*
- b. Modeling appropriate behavior in conformity with this Policy.*
- c. Taking all steps necessary to prevent harassment, discrimination and retaliation from occurring.*
- d. Receiving complaints in a fair and serious manner, and documenting steps taken to resolve complaints.*
- e. Monitoring the work environment and taking immediate appropriate action to stop potential violations, such as removing inappropriate pictures or correcting inappropriate language.*
- f. Following up with those who have complained to ensure that the behavior has stopped and that there are no reprisals.*
- g. Informing those who complain of harassment and/or discrimination of their option to contact the U.S. Equal Employment Opportunity Commission (“EEOC”) or the California Department of Fair Employment and Housing (“DFEH”) regarding alleged violations.*
- h. Assisting, advising or consulting with Human Resources and/or employees of other City department(s) regarding this Policy.*
- i. Assisting in the investigation of complaints when authorized, and, if the complaint is substantiated, recommending appropriate corrective or disciplinary action in accordance with the City’s Personnel Rules, up to and including dismissal.*
- j. Implementing appropriate disciplinary and remedial actions.*
- k. Reporting potential violations of this Policy of which he or she becomes aware to Human Resources, regardless of whether a complaint has been submitted to any City department or management personnel.*
- l. Participating in periodic training and scheduling employees for training.*

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Supervisory personnel who are aware of ongoing harassment, discrimination and/or retaliation, as defined in this Policy, but do not take responsible appropriate steps, as set forth above, shall be subject to appropriate disciplinary action, up to and including dismissal.

2. All employees are responsible for compliance with this Policy and for each of the following:

- a. Treating all individuals in the workplace or at worksites with respect and consideration.*
- b. Modeling appropriate behavior in conformity with this Policy.*
- c. Participating in periodic training.*
- d. Fully cooperating with the City's investigation by responding fully and truthfully to all questions posed during the investigation.*
- e. Taking no actions to influence any potential witness while the investigation is ongoing.*
- f. Reporting any act he or she believes in good faith constitutes harassment, discrimination or retaliation as defined in this Policy to his/her supervisor, department head or Human Resources.*

3. While the City vigorously defends an individual's right to work in an environment free of harassment, discrimination and retaliation, the City also recognizes that knowingly false accusations can have serious consequences. Accordingly, any individual who is found, through the City's investigation, to have knowingly and falsely accused another person of harassment, discrimination or retaliation will be subject to appropriate disciplinary action, up to and including dismissal.

E. Complaint Procedure.

1. A covered individual who believes he or she has been subjected to discrimination, harassment or retaliation may make a complaint, orally or in writing, to any of the individuals listed below without regard to any chain of command.

- a. Immediate supervisor*
- b. Any supervisor or manager within or outside the department*

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- c. Department Director*
- d. Human Resources Director or designated representative*

2. Any supervisor, manager or director who receives a harassment, discrimination or retaliation complaint shall immediately notify the Human Resources Director. A complaint accusing the Human Resources Director of harassment, discrimination or retaliation shall be reported to the City Manager.

3. An individual has the option to report harassment, discrimination or retaliation to the DFEH or the EEOC. These administrative agencies offer legal remedies and a complaint process.

The nearest offices are listed in the government section of the telephone book or employees can check the posters that are located on the City's bulletin boards for office locations and phone numbers.

F. Investigation.

1. Upon receipt of notification of a harassment, discrimination or retaliation complaint, the Human Resources Director shall:

a. Authorize and supervise or conduct an investigation of the complaint. The Human Resources Director shall determine who shall conduct the investigation and/or authorize whatever investigation he or she deems necessary in accordance with this Policy. The investigation will generally include interviews with: (a) the complainant; (b) the accused; (c) witnesses; and (d) other persons who may have relevant knowledge concerning the allegations in the complaint.

b. Review the factual information gathered through the investigation to determine whether the alleged conduct did occur and whether there has been a violation of this Policy. In doing so, the Human Resources Director shall consider all the factual information gathered through the investigation, the totality of the circumstances, the nature of the conduct, and the context in which the alleged incidents occurred.

c. Report a summary of the determination as to whether this Policy has been violated to appropriate persons. If discipline or sanctions are imposed, the level of discipline or sanctions will not be communicated to the complainant.

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d. If it is determined that such conduct in violation of this Policy has occurred, the Human Resources Director shall take or recommend prompt and effective remedial action. The remedial action will be commensurate with the severity of the offense.

e. Take reasonable steps to protect the complainant(s), or other individuals involved in the investigation, from harassment, discrimination and retaliation.

2. If a complaint of harassment, discrimination and/or retaliation is against the Human Resources Director, City Council Members, Commissioners, or other City officials, the City Manager shall be responsible for investigating such complaint in accordance with the process set forth immediately above. If a complaint of harassment, discrimination and/or retaliation is against the City Manager, the City Attorney shall be responsible for investigating such complaint in accordance with the process set forth immediately above.

3. The City takes a proactive approach to potential violations of this Policy and will conduct an investigation if its officers, supervisors, or managers become aware that harassment, discrimination or retaliation may be occurring, regardless of whether a recipient of the conduct (victim) or a third party reports a potential violation.

G. Confidentiality.

1. Efforts will be made to the greatest extent allowed by law to maintain confidentiality of complaints made under this Policy. Complete confidentiality cannot occur, however, due to the need to fully investigate complaints and take effective remedial action. Disclosure of a completed investigation report may be necessary to support a disciplinary action, to defend the City in adversarial proceedings, to take effective remedial action, or to comply with applicable laws and court orders.

2. An employee who is interviewed during the course of an investigation is prohibited from attempting to influence any potential witness while the investigation is ongoing. An employee may discuss his or her interview with a designated representative.

H. Dissemination of Policy. *All employees will receive a copy of this Policy when they are hired. The Policy may be updated from time to time and redistributed with a form for the employee to sign and return acknowledging that the employee has received, read, and understands this Policy.*

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PURPOSE

Calimesa Fire Department members are required to conduct themselves in a highly self-disciplined manner, obeying the City of Calimesa Personnel Rules and Regulations, this Fire Department Policy Manual, and all Departmental Standard Operating Procedures (SOPs) and Standard Operating Guidelines (SOGs). In situations where members do not adhere to these expectations, supervisors will take the necessary action to correct the problem.

This policy will guide Calimesa Fire Department supervisors in dealing with disciplinary problems they may encounter, and establishing procedures for administrative appeals pursuant to the Firefighters Procedural Bill of Rights Act (FFBOR), Cal. Gov. Code § 3250 et seq.

For additional information regarding discipline procedures, see Rule 40 and Rule 41 of the City of Calimesa Personnel Rules and Regulations.

If supervisors have any questions concerning employee discipline, they should be directed to the Department's Fire Chief or Deputy Fire Chief.

GENERAL INFORMATION

It is the policy of the Fire Department that supervisors administer discipline in a corrective, progressive, and lawful manner.

“Corrective” in the sense that the supervisor and member come to an understanding about the causes and/or reasons for a member’s deficiencies, correct those deficiencies, and restore the member to a productive and positive employment status.

“Progressive” in that discipline will normally begin with a verbal reprimand or warning and, when circumstances of separate or related incidents warrant, proceed to written reprimand(s), suspension without pay, demotion, and finally to dismissal. An incident of misconduct may require any of these forms of disciplinary action whether or not a lesser form has preceded the action. The level of discipline may be based depend upon the severity of the offense alone or in combination with the employee’s past performance and discipline history.

“Lawful” in that discipline and the procedure by which it is administered does not violate City Personnel Rules and Regulations, this Fire Department Policy Manual, SOPs, SOGs, general orders, the FFBOR, or the member's constitutional rights.

The principal objective of disciplinary action is to improve or correct performance, efficiency and morale of the member receiving discipline as well as that of the Department. To the extent allowed by law, disciplinary proceedings and the results thereof are confidential. The supervisor is

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responsible for maintaining this confidentiality. All media inquiries pertaining to disciplinary actions shall be directed to the Fire Chief or Deputy Fire Chief.

Supervisors should keep in mind that all disciplinary actions imposed are reviewed by their superiors and are subject to the procedures set forth herein. It is mandatory that supervisors seek support from their superiors prior to taking disciplinary action and feel comfortable that they can support their actions in a formal review or appeal process. Support from supervisors is extremely important when disciplinary action beyond a verbal counseling/reprimand is being considered.

APPLICABILITY OF PROCEDURES

The disciplinary procedures set forth in this Policy No. 205.03 apply to all employees of the Fire Department holding positions in the competitive service engaged in fire suppression activities. Employees who have successfully passed their probationary period in positions that do not involve fire suppression activities shall be entitled to the disciplinary procedures set forth in Rule 40 and Rule 41 of the City of Calimesa Personnel Rules and Regulations.

Probationary employees and interns/reserves serve in an at-will capacity and may be released or separated at any time without any prior notice or right of administrative appeal or evidentiary hearing. The disciplinary procedures set forth in this Policy Manual and the Rules and Regulations of the City of Calimesa do not apply to probationary employees or interns/reserves.

LEGAL REPRESENTATION

For any firefighter covered by the FFBOR, upon the filing of a formal written statement of charges, or whenever an interrogation focuses on matters that may result in punitive action against any firefighter, that firefighter, at their request, shall have the right to be represented by a representative of their choice who may be present at all times during the interrogation. The representative shall not be a person subject to the same investigation. The representative shall not be required to disclose or be subject to any punitive action for refusing to disclose, any information received from the firefighter under investigation for noncriminal matters. However, this shall not apply to counseling, instruction, or informal verbal admonishment by, or other routine or unplanned contact with, a supervisor or any other firefighter.

PROGRAMS FOR IMPROVING JOB PERFORMANCE

In most cases minor job performance problems can be resolved by the supervisor bringing the problem to the attention of the employee, and the employee making the proper modification in his/her performance. When a serious job performance problem is identified, the supervisor must decide whether to solve it through:

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- Training
- Non-Disciplinary Counseling
- Disciplinary Action

Each situation will be considered separately, and it will be the supervisor's responsibility to make a determination as to the best course of action to take to resolve the situation.

If the situation is determined to be a training problem, a program for improvement will be developed for the member.

Any accusation of misconduct or complaint involving Fire Department members shall be thoroughly investigated before formal action is taken.

All accusations of misconduct or complaints involving Fire Department members shall include notification of the next level Supervisor. This insures the situation is assessed and assigned to the appropriate level of supervision necessary for the investigation.

The investigation is a fact-finding process and Supervisors must be cautioned not to make judgments until a thorough investigation is concluded.

ADMINISTRATIVE APPEALS PURSUANT TO THE FIREFIGHTERS PROCEDURAL BILL OF RIGHTS ACT

Pursuant to Government Code § 3254.4 of the Firefighters Procedural Bill of Rights Act (FFBOR), all administrative appeals instituted by a firefighter shall be conducted in conformance with Government Code section 11500 et.seq. This section sets forth a summary of the applicable administrative appeal procedures under the FFBOR. All applicable sections of Government Code § 11500 et.seq. are incorporated herein by reference even if not expressly set forth herein.

1. Definitions.

a. “Firefighter” means any Department employee who qualifies as a “firefighter” within the meaning of Government Code § 3251. Firefighter shall not include a probationary employee.

b. “Punitive action” means any action that may lead to dismissal, demotion, suspension, reduction in salary, written reprimand, or transfer for purposes of punishment. A layoff is not punitive action subject to administrative appeal.

2. Scope

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Punitive action or denial of promotion on grounds other than merit shall not be taken by the Department against any firefighter without providing the firefighter with an opportunity for an administrative appeal under the FFBOR as implemented in this Policy.

The Fire Chief or Deputy Fire Chief shall not be removed by the Appointing Authority without providing that person with written notice, the reason or reasons for removal, and an opportunity for administrative appeal to the extent required by the FFBOR. This provision does not modify the at-will status of the Fire Chief or Deputy Fire Chief, or create a property interest in his/her position.

The administrative appeal process set forth herein does not apply to probationary employees or to interns/reserves.

3. Notice of Discipline/Accusation

A. After conclusion of the pre-disciplinary conference held pursuant to Personnel Rule 40, and within thirty (30) calendar days of the Department's final decision, but not less than forty-eight (48) hours prior to imposing discipline, the Fire Chief shall notify the employee in writing of the nature and extent of the discipline, a statement of charges setting forth the acts or omissions with which the employee is charged and the rules, regulations, policies and procedures which the firefighter is alleged to have violated. (Gov. Code, Section 11503)

B. The Notice of Discipline/Accusation shall also advise the firefighter of his/her right to request an appeal hearing by filing a notice of appeal/notice of defense. The Notice of Appeal/Defense must be filed within fifteen (15) days after service upon the employee of the Notice of Discipline. Failure to request an appeal hearing within the 15-day period will constitute waiver of the employee's right of appeal. (Gov. Code § 11505)

C. The Notice of Discipline/Accusation shall be served personally on the employee or by registered mail. (Gov. Code § 11505(c))

4. Right to Appeal and Pre-Hearing Procedures

A. Firefighters appealing disciplinary actions taken pursuant Section 3.A of this Policy, shall have administrative appeal rights in accordance with Govt. Code §§ 11500 et seq. and otherwise satisfying the administrative appeal rights established under Gov. Code § 3250 et.seq.

B. Within thirty (30) days of the submission of the notice of appeal, the Appointing Authority and Respondent shall exchange a list of the names and addresses of all witnesses to the extent known to the other party, including, but not limited to, those intended to be called to testify

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at the hearing and shall exchange copies of all documents to be used during the hearing, except such documents that are intended for impeachment or rebuttal only (Gov. Code § 11507.6)

C. Any party claiming that another party has not complied with the requirements of Government Code § 11507.6 (Section 4.B. above), may file a motion to compel discovery pursuant to Government Code § 11507.7.

D. On the motion of either party, the ALJ or City Manager may conduct a prehearing conference in accordance with Government Code § 11511.5. Such conference may deal with any matters, including but not limited to: exploration of settlement possibilities, preparation of stipulations, clarification of issues, rulings on identity and limitation of the number of witnesses, and exchange of witness and exhibit lists.

5. Appeal Hearing Procedures

A. Pursuant to Government Code 11152(b), the City has determined that appeals shall be presided over by an administrative law judge on staff of the State Office of Administrative Hearings (hereinafter referred to as “ALJ”). (Gov. Code § 11512(b))

(1) The ALJ shall preside at the appeal hearing, rule on the admission and exclusion of evidence and determine and rule on all matters of law, both procedural and substantive. In conducting the appeal hearing, the ALJ shall follow the provisions of Government Code § 11513.

B. A hearing shall be conducted at a time and place to be determined by the City Manager, or as otherwise agreed by the parties. (Gov. Code § 11508)

C. Notice of the hearing shall be provided to the parties pursuant to Government Code § 11509,

D. The appeal proceedings shall be reported by a stenographic reporter. However, upon the consent of all the parties, the proceedings may be reported electronically.

5. Decision

A. Within thirty (30) days after the case is submitted to the ALJ, the ALJ shall prepare a proposed written decision to be submitted to the City Manager. Thirty days after the receipt by the City of the proposed decision, a copy of the proposed decision shall be filed by the City as a public record and a copy shall be served by the City on each party and his/her attorney. The filing and service is not an adoption of a proposed decision by the City. (Gov. Code § 11517)

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B. Within one-hundred (100) days of receipt by the City Manager of the ALJ's proposed written decision, the City Manager may take any of the following actions (Gov. Code § 11517):

- (1) Adopt the proposed decision in its entirety.
- (2) Reduce or otherwise mitigate the proposed penalty and adopt the balance of the proposed decision.
- (3) Make technical or other minor changes in the proposed decision and adopt it as the decision. Action by the City Manager under this paragraph is limited to a clarifying change or a change of a similar nature that does not affect the factual or legal basis of the proposed decision.
- (4) Reject the proposed decision and refer the case to the same ALJ if reasonably available, otherwise to another ALJ, to take additional evidence. If the case is referred to the ALJ pursuant to this subparagraph, the ALJ shall prepare a revised proposed decision based on the additional evidence and the transcript and other papers that are part of the record of the prior appeal hearing. A copy of the revised proposed decision shall be furnished and the decision shall be served to each party and his/ her attorney.
- (5) Reject the proposed decision, and decide the case upon the record, including the transcript, or upon an agreed statement of the parties, with or without taking additional evidence. By stipulation of the parties the City Manager may decide the case upon the record without including the transcript. All applicable procedures of Government Code § 11517(C)(2)(E) shall apply.

C. The City Manager's decision will be reduced to writing and shall be final and binding on the parties.)

D. The City Manager's written decision shall be served on the parties by personal service or registered mail. (Gov. Code § 11518), and shall comply with Code of Civil Procedure § 1094.6.

E. The City Manager's decision shall be subject to judicial review pursuant to Code of Civil Procedure § 1094.5. (Gov. Code § 11523)

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PURPOSE

The Alternative Dispute Resolution Process Policy provides a positive alternative means to the formal complaint process for Calimesa Fire Department Members needing help and guidance in resolving conflict or situations that are negatively affecting them at work. The Alternative Dispute Resolution Process is a confidential process and participation is voluntary. This process is not intended to discourage any Department member from filing a formal complaint.

BACKGROUND

Normally conflicts that occur at work are resolved either through individual initiative, peer pressure, or supervisory intervention. However, these approaches have not always been effective in resolving disputes between supervisors and subordinates, and those involving cultural, race, personality or gender issues.

With no intervention, these incidents often continue to escalate until a formal complaint is filed or the Department becomes aware and takes formal action. This usually occurs late in the evolution of the problem when relationships have suffered irreparable damage and performance has deteriorated and those involved possibly feel alienated and disconnected from the work group.

Addressing these complicated problems through the formal complaint process often results in the incident being investigated and concluded without ever resolving the circumstances that allowed the problem to develop and grow.

An alternative resolution process can shift the intervention focus to problem solving and resolution that involves only those directly involved.

PROCESS

This procedure provides two non-traditional options that are available to Department members. Both options are in concert with the Calimesa Fire Department's philosophy that values, mutual respect, support and interpersonal communication with emphasis on tolerance, unity and consideration.

Option One: Recognizes and endorses the tradition of handling differences informally at the level at which they occur in the organization.

To facilitate problem solving, a worksheet is provided to assist those involved in identifying the problem, recognizing how it impacts the crew or individual, and as an aid to generating possible solutions. It also can be used as an agreement contract with a review process.

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To be effective, option one should be accessed early with the goal of restoring effective workplace relationships. At this point in the process the intent is not to determine fault or administer discipline.

Rather, this option can be used as a tool to proactively address workplace conflicts by creating win-win agreements where employees themselves manage the resolution process.

Option One can be initiated by anyone in the workgroup affected by the problem, optimally by the individual(s) most directly involved. It is not necessary for the workplace supervisor to initiate the process, although he or she may choose to do so.

Option Two: Makes assisted mediation available to bring the parties toward successful resolution of the problem.

Employee differences and disputes frequently arise in an emotionally charged atmosphere. In mediation, a neutral third party helps the disputants focus on the issues and possible solutions in a setting away from the background and personal circumstances that may have triggered the dispute.

The mediator helps the parties identify the substantive issues and explore areas of agreement. The mediator's most valued attribute is neutrality. Their role is to improve communication, clear up misunderstandings, recognize differences in perception and facilitate the exchange of information. Often times with the "roadblocks" removed it will be possible to work out an agreement.

In general, employees can expect a mediator to: work with involved parties jointly and separately; explain the mediation process; identify misunderstandings; facilitate communications; explore areas of agreement; facilitate problem solving.

What is discussed in the mediation is confidential and nothing the parties say can be used against them should the matter not be resolved. The mediator cannot be compelled to testify concerning what was said during mediation.

Mediators can be selected from within the department, or a professional mediator can be used. The decision on whether to use an internal or external mediator is up to the Fire Chief.

The options listed in this procedure are alternatives to filing a formal complaint and should be considered in the early stages of a problem. Supervisors may initiate the process as a first step in handling a formal complaint if in their judgment it would be beneficial.

The Alternative Dispute Resolution Process is a confidential process and participation is voluntary. This process is not intended to discourage any Department member from filing a formal complaint.

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See next page for the Alternative Dispute Resolution Worksheet.

Alternative Dispute Resolution Worksheet

(Informal process for dealing with issues on the job)

- I.** Identify and/or discuss the problem as you see it (filled out by person initiating problem solving worksheet)

- II.** How does this matter affect you personally or your work group?

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- III.** Identify and/or discuss the problem as you see it. (filled out by other person or persons in the workgroup)

- IV.** How does this matter affect you personally or your work group?

- V.** What steps can be taken by each involved party to resolve this problem?
(Possible Solutions)

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Employee #1

Employee #2

Employee #3

Employee #4

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VI. The Agreement: How we are going to solve the problem?

VII. Review date _____

Mutual agreement on a date to reevaluate how agreement is working for all parties

VIII. Signature of All Parties

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Employee #1 _____ Date: _____

Employee #2 _____ Date: _____

Employee #3 _____ Date: _____

Employee #4 _____ Date: _____

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Policy: 205.05 Manual Firearms

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PURPOSE

The Manual Firearms Policy specifically prohibits the carrying or possessing of a weapon on or within the City of Calimesa Fire Department property, facilities, or equipment, at all times. This includes private vehicles parked on City property.

POLICY

The City of Calimesa's responsibility is to protect employees, citizens, and public and private property. City officials may open and search lockers, desks, containers and vehicles on City property if there is reasonable suspicion that weapons may be in the search areas.

Exception: Law enforcement officers, and certified peace officer members, assigned to, and on-duty in Fire Investigations are exempt from this policy.

The Fire Chief or Deputy Fire Chief shall be notified any time a firearm is brought into a Fire Department facility by any person.

This policy applies to all employees, volunteers, and other non-paid members of the Fire Department (except as listed above), and to all family members of Department members and visitors.